General Contract for Services

This General Contract for Services ("Contract") is made effective as of _____ ("Effective Date"), by and between Tim Heineccius ("Developer"), of Heineccius Consulting, Am Stingenberg 35, 53227 Bonn, Germany and Tom Lachaussee ("Owner"), of 19288 Stonegate Dr, Cottonwood, California 96022.

Description of Services. Beginning on the Effective Date, the Developer will provide to the Owner the following services (collectively, "Services"): Build and maintain a full stack web application generating paid service to manage a tip sharing program that satisfies all government rules and regulations using generally accepted accounting principles. The application must have printable (pdf) reporting, ongoing cloud storage (though storage will be an ongoing separate charge) for accessing current work and archiving read and print only, final reports. It is understood that “tweaking, debugging and further programming refinements” of the deployed application will be necessary and mutually beneficial.

Payment. Payment shall be made to the Developer as follows:
Event: Upon execution of this contract.
Payment Amount: $2,500.00 (US)

Event: Deployment of application – Deployment is achieved when the parties mutually agree all known bugs are fixed and the application goes live.
Payment Amount: $2,500.00 (US)

Event: Monthly payments following the date the Deployment payment is made.
Payment Amount: A monthly payment of $7.00 (US) per PAID subscription, up to a maximum of $1,250.00 (US) shall be paid by Owner to Developer by the 15th day of the following month. The monthly payments will continue unless a material breech occurs or until the buyout option is exercised by Owner.

Warranties. The Developer shall provide its Services and meet its obligations under this Contract in a timely and workmanlike manner, using knowledge and recommendations for performing the Services which meet generally acceptable standards in the Developer's community and region and will provide a standard of care equal to, or superior to, care used by service developers similar to the Developer on similar projects. Developer further guarantees that all debugging, fixes, tweaks or other programming needs will be addressed promptly as they are critical to the ongoing paid subscription plans and as such are mutually beneficial.

Term. This Contract will begin on the Effective Date and shall remain in effect unless terminated as outlined in the early termination section or the exercise of the buyout option by the Owner described below.

Buy Out Option. At the discretion of the Owner the buyout option may be exercised any time after Deployment but not before 12 months of paid subscriptions to Developer. The buyout is calculated at the average of the most recent 12 month’s subscription payments in a lump sum not to exceed $15,000 (US).

Termination. There is no automatic termination of this contract.

Early termination: Either party may terminate the contract upon 30 days written email notice for reasonable cause only.
<u>By Owner Before Deployment</u>: If deployment has not been achieved after initial payment within an agreed development period of Ninety (90) days, a pro rata portion of the deployment payment of 1/12 of $2500 (US) per month will be made to Developer and all current work product to date of notice will be relinquished to Owner.

By Owner After Deployment: If Deployment has been achieved and early termination by Owner is warranted it can only be for refusal to “tweak, debug or refine programming” in a reasonable time using generally accepted standards in the Developer's community and providing a standard of care equal to, or superior to, care used by service developers similar to the Developer on similar projects. This option will only be effective if said notice occurs within the first 12 months after Deployment. Any termination by Owner after 12 months, after deployment, can only be exercised with the buyout option.
If early termination by Owner is warranted, before buyout option is properly effective, Owner shall pay Developer in a lump sum the equivalent of all months paid to Developer for paid subscriptions payments to the date of the notice. Upon payment, the Developer will relinquish all work product and all intellectual property in the work product and guarantee that the ongoing product will be in its best working order to date.
By Developer After Deployment: If early termination by Developer is warranted and deployment has been achieved, the contract can only be terminated for Owner’s failure to make payments in the proper amounts by the prescribed date. If this occurs all “tweaks, debugging and programing refinements” may cease until agreement is reached and amounts owed are paid. If agreement cannot be reached Owner shall pay Developer in a lump sum the equivalent of all months paid to Developer for paid subscriptions payments to the date of the notice. All rights and remedies in this contract remain though this payment is made. Upon this early payment, the Developer will relinquish all work product and all intellectual property in the work product and guarantee that the ongoing product will be in its best working order to date.

Ownership of Social Media Contacts. Any social media contacts, including "followers" or "friends," that are acquired through accounts (including, but not limited to email addresses, blogs, Twitter, Facebook, YouTube, or other social media networks) used or created on behalf of the Owner are the property of the Owner.

Work Product Ownership. Any copyrightable works, ideas, discoveries, inventions, patents, products, or other information (collectively, "Work Product") developed in whole or in part by the Developer in connection with the Services will be the exclusive property of the Owner. Upon request, the Owner will execute all documents necessary to confirm or perfect the exclusive ownership of the Owner to the Work Product.

Indemnification. The Parties agree to indemnify and hold each other harmless from all claims, losses, expenses, fees including attorney fees, costs, and judgments that may be asserted against one party that result from the acts or omissions of the other and/or their respective employees, agents, or representatives.

Remedies on Default. In addition to any and all other rights a party may have available according to law, if a party defaults by failing to substantially perform any provision, term, or condition of this Contract (including without limitation the failure to make a monetary payment when due), the other party may terminate the Contract by providing written notice to the defaulting party. This notice shall describe with sufficient detail the nature of the default. The party receiving such notice shall have 10 days from the effective date of such notice to cure the default(s). Unless waived by a party providing notice, the failure to cure the default(s) within such time period shall result in the termination of this Contract.

Force Majeure. If the performance of this Contract or any obligation under this Contract is prevented, restricted, or interfered with by causes beyond either party's reasonable control ("Force Majeure"), and if the party is unable to carry out its obligations gives the other party prompt written notice of such event, then the obligations of the party invoking this provision shall be suspended to the extent necessary by such event. The term Force Majeure shall include, without limitation, acts of God, plague, epidemic, pandemic, outbreaks of infectious disease, or any other public health crisis, including quarantine or other employee restrictions, fire, explosion, vandalism, storm, or other similar occurrence, orders or acts of military or civil authority, or by national emergencies, insurrections, riots, or wars, or strikes, lock-outs, work stoppages, or other labor disputes, or supplier failures. The excused party shall use reasonable efforts under the circumstances to avoid or remove such causes of non-performance and shall proceed to perform with reasonable dispatch whenever

such causes are removed or ceased. An act or omission shall be deemed within the reasonable control of a party if committed, omitted, or caused by such party, or its employees, officers, agents, or affiliates.

Dispute Resolution. The parties will attempt to resolve any dispute arising out of or relating to this Contract through friendly negotiations among the parties. If the matter is not resolved by negotiation, the parties will resolve the dispute using the below Alternative Dispute Resolution (ADR) procedure. Any controversies or disputes arising out of or relating to this Contract will be submitted to mediation in accordance with any statutory rules of mediation. If mediation does not successfully resolve the dispute, the parties may proceed to seek an alternative form of resolution in accordance with any other rights and remedies afforded to them by law.

Confidentiality. The Developer, and its employees, agents, or representatives will not at any time or in any manner, either directly or indirectly, use for the personal benefit of the Developer, or divulge, disclose, or communicate in any manner, any information that is proprietary to the Owner. The Developer and its employees, agents, and representatives will protect such information and treat it as strictly confidential. This provision will continue to be effective after the termination of this Contract. Upon termination of this Contract, the Developer will return to the Owner all records, notes, documentation, and other items that were used, created, or controlled by the Developer during the term of this Contract.

Notice. Any notice or communication required or permitted under this Contract shall be sufficiently given if delivered in person or by certified mail, return receipt requested, to the addresses listed above or to such other address as one party may have furnished to the other in writing. The notice shall be deemed received when delivered or signed for or on the third day after mailing if not signed for.

Entire Contract. This Contract contains the entire agreement of the parties regarding the subject matter of this Contract, and there are no other promises or conditions in any other agreement whether oral or written. This Contract supersedes any previous or simultaneous oral or written promises, warranties, representations, agreements, or conditions between the parties.

Amendment. This Contract may be modified, amended, or supplemented only if the changes are made in writing and signed by both parties.

Severability. If any provision of this Contract shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of this Contract is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.

Waiver. The failure of either party to enforce any provision of this Contract shall not be construed as a waiver or limitation of that party's right to subsequently enforce and compel strict compliance with every provision of this Contract.

Applicable Law. This Contract shall be governed by the laws of California.

Signatories. This Contract shall be signed on behalf of Tom Lachaussee by Tom Lachaussee (Owner) and on behalf of Tim Heineccius by Tim Heineccius (Developer) and effective as of the date first above written.

The Owner: Tom Lachaussee Date:

The Developer: Tim Heineccius Date: Jan 3rd, 2026